

Remedies

Introduction

Remedies in tort are of two kinds:-

- (1) Judicial and
- (2) Extra-Judicial.

Judicial remedies are those obtained through courts of law. Extra-judicial remedies are those secured by means of self-help. The various types of extra-judicial remedies are the right of distress, the right of retaking property, the abatement of nuisance and the right of re-entry on land.

There are three main types of Judicial remedies:-

- (1) Damages
- (2) Injunction, and
- (3) Specific restitution of property

Damages

This is the most characteristic remedy of a tort. Damages are the sum of money which a person wronged is entitled to receive from the wrongdoer as compensation for the wrong; it is different from Damage, which is the actual loss or actual injury. Damage is the loss which is the cause of the award of the damages.

Kinds of Damages

The damages recoverable in a tortious action may either be nominal or real.

Nominal Damages

Nominal damages are a small sum of money, for example – a shilling or even a farthing or paisa, awarded not by way of compensation for any actual loss suffered, but merely by way of recognition of the existence of some legal right vested in the plaintiff and violated by the defendant.

In *Constantine v. Imperial London Hotels Ltd.* (1944) KB, the plaintiff, the famous

West Indian Cricketer, was held entitled to nominal damages because the defendants wrongfully refused to receive him into one of their hotels to which he wished to go, though they provided him with lodging in another of their hotels.

All cases of *injuria sine damno* fall under this head.

For trespass and other torts which are actionable, *per se*, nominal damage will at least be awarded.

In *Ashby v. White*, (1704), Holt, CJ said, "If a man gives another a cuff in the ear, though it costs him nothing, no, not so much as a little biachylan, yet he shall have his action, for its personal injury.

Real Damages

Real damages are those which are assessed and awarded as compensation for damage actually suffered by the plaintiff and not simply by way of mere recognition of a legal right infringed. While fixing the sum to be given as damages, the court tries to fix such a sum, so as to put the party who has been injured in the same position as he would have been in, if he had not sustained the wrong for which he is getting compensation. This principle has been expressed as the doctrine of "*restitutio in integrum*".

Contemptuous Damages

Such damages are awarded in a case, where the plaintiff's claim is weak and the court has low opinion regarding the plaintiff's claim and thinks that the plaintiff, although has suffered greater loss, does not deserve to be fully compensated. The sum awarded is too low. In *Kelly v. Sherlock*, 1866 LR QB 686, where the defendant in his newspaper had labelled the plaintiff in very bad terms but the plaintiff had retorted with a counter attack, equally bad, the plaintiff got only a farthing as damages.

Exemplary Damages

These types of damages are awarded by court when it views with extreme displeasure the wanton misconduct of the defendant in utter disregard of the plaintiff's rights.

The plaintiff may not have sustained any material loss, still in order to set up an example of the defendants, so that other similar minded persons should not attempt to do similar wrongs, court usually awards by way of punishment, a higher amount as damages to the injured plaintiff.

Lord Devlin in *Rookes v. Barnard* expressed that the object of exemplary damages being to deter and punish the awarder of such damages.

Lord Devlin also held that such damages can be allowed only in three cases:-

- (a) Where the damage has been caused by oppressive, arbitrary, unconstitutional action by the servants of the government and it did not extend to oppressive action by private corporations or individuals.
- (b) Where the defendant's conduct has been calculated by him to make a profit for himself which may well exceed the compensation payable to the plaintiff. Exemplary damages can properly be awarded whenever it is necessary to teach a wrongdoer that the tort does not pay.
- (c) Where exemplary damages are expressly authorised by the statute.

In *Bhim Singh v. State of J & K*, 1988 SC, the Supreme Court awarded exemplary damages when there was wrongful detention and violation of constitutional right.

Prospective Damages

Prospective damages means compensation for damages which is quite likely result of the defendant's wrongful act but which has not actually resulted at the time of the decision of the case.

Example

If due to an accident, caused by the defendant, a child becomes orphan, the damages to be awarded to him may not only include the loss suffered by him upto the date of the action, but also future likely damage to him in respect of

In *Subhash Chander v. Ram Singh*, 1972 Delhi, the plaintiff, a 7 year old boy was hit by bus resulting in permanent disability. He was awarded a compensation of Rs. 3000 under the heading "probable future loss by reason of incapacity and diminished capacity of work". This amount was increased to Rs.7,500/- by the Delhi High Court.

Similarly in *Y.S. Kumar v. Kuldip Singh*, 1972 Punjab, the plaintiff, who was hit by a motor cycle, which resulted in permanent disability, was awarded compensation for physical disability and loss of enjoyment of normal life.

Successive Action

All the damages are assessed in one and the same action, because there cannot be more than one suit for the same cause of action.

This rule was laid down in *Fitter v. Real* (UOI), there are two exceptions to the above rule:-

- (1) Where two distinct rights are violated by the same wrongful act. [*Bvunsden v. Humphrey* (1884) QBD]
- (2) When the tort is a continuing one, example - Nuisance.

Measure of Damages

Damages are measured, according to the degree and extent of the pain and suffering caused to the plaintiff, and such pain and suffering includes past and future suffering, as well as mental and physical pain. The severity and duration of the pain and suffering is also taken into account.

If the plaintiff, even though had a severe injury, but did not experience any pain and suffering, for example - due to unconsciousness, no action, under this head lies.

If the plaintiff dies before bringing the action, his legal representative can recover compensation under this head.

In *Venkatesh v. City Municipal Council*, AIR 1975 Karn 62, the plaintiff was the owner of several buildings in Gulbarga town. Three buildings belonging to the plaintiff were demolished by the officers of the municipality between 10-1-1966 and 21-1-1966 for the purpose of broadening a road. Before carrying out the demolition, the municipality did not duly acquire the land with the building under the Land Acquisition Act. The plaintiff brought the suit for recovery of damages for the tortious act of the defendant. The defendants were held liable. The court said thus: "One whose interest in immovable property has been injured by the tortious act or omission of another is entitled to those damages which will compensate him for the injury sustained. The goal of the court is to award such an amount of money as will restore the injured party to the same property status which he occupied immediately prior to the injury."

In *Laxminarayan v. Sumitra Bai*, 1995 M.P., where the defendant had sexual intercourse with the plaintiff by fraud and promise of marriage, she was held entitled to substantial damages, on account of physical pain, indignity, chances of marriage becoming dim and social stigma.

Rehana v. Ahmedabad Municipal Transport Service, 1976 Guj. where a girl of 16, was injured in an accident resulting in permanent incapacity of legs, she was awarded Rs.10,000 under "personal suffering due to incapacity". She was also compensated for medical expenses and for loss in the enjoyment of life. Consideration was also shown for her diminished prospects of marriage due to this injury.

Similar was the decision of J & K Court, in *U.O.I. v. Savita Sharma*, 1979 J & K, where an 18 year old girl was incapacitated due to an accident. She was compensated for medical expenses, for pain and suffering, for permanent disablement, and for replacement of artificial leg for 40 years, i.e. period of her life expectancy.

Similar was decision of Karnataka High Court in *Karnataka State Transport Corporation v. Krishna*, AIR 1981, Kant.

In *Klans Mittelbachert v. East India Hotels Ltd.* 1997 Delhi, the court observed that the high price tag hanging on service pack of a 5 star hotel attracts and costs an obligation to pay exemplary damages, if an occasion may arise for the purpose.

Although the damages to which the deceased was held entitled to amounted to be sum of Rs. 1 crore 3 lakhs approx. a decree of Rs. 50 lakhs only was passed in favour of the plaintiff, as he had claimed only that much of compensation.

Injunction

An injunction is an extra-ordinary judicial remedy resorted to the parties and given effect to by judges in exceptional cases.

An injunction is an order by the court to a party to the effect that he shall do or refrain from doing a particular act.

Interlocutory (Temporary Injunction)

An interlocutory injunction is one issued provisionally before the final hearing of the action or in order to prevent the commission or continuance of an alleged injury in the meantime pending an inquiry into the case and final determination of the right of the plaintiff to a perpetual injunction.

An interlocutory injunction can only be issued in cases where there is a prayer for a perpetual injunction.

Perpetual Injunction

A perpetual or permanent injunction is issued after the final hearing and determination of the question at issue between the parties.

Ex-parte Injunction

Sometimes an ex-parte injunction may be issued by the court in favour of a party when the latter insists that unless immediate injunction is issued restraining the other party from pursuing a particular course, irreparable damage will be caused to him.

Prohibitory and Mandatory Injunction

Prohibitory injunction stops the wrongdoer from repeating or doing some act which interferes with the plaintiff's lawful rights.

Example

stripping a wrongdoer from creating nuisance or trespass.

Mandatory injunction is an order which requires the defendant to do some positive act, for example – An order to pull down a wall which causes the obstruction to the plaintiff's right to light.

The remedy of injunction is a discretionary remedy which the court may issue whenever it appears "just and convenient" to it to do so.

The balance of convenience of the parties should always be looked into by a court before issuing an injunction.

Injunctions are often issued either:-

- (a) Against the continuance of an injury or,
- (b) Against the repetition of an injury or,
- (c) Against the commission of an injury.

One of the rules with regard to the issue of injunction is that an injunction should not be granted where damages would form an adequate remedy. [London and Blackwall Rly. Co. v. Cross, (1886) 31 Ch D 369]
Nor will an injunction be granted where the case is one not of legal injury but of mere inconvenience.
An injunction will not be granted in a trivial case.

Specific Restitution

Under this remedy, the injured party is entitled to recover the specific item of property from the wrongdoer. Thus, he who is wrongfully dispossessed of his land is entitled to recover, not the value of the land as damages, but the land itself

